

COURT OF PRINCIPAL SESSIONS JUDGE, SHOPIAN

File No.46/ Appeal

CNR.No. JKSP010004692023

Date of institution= 05.08.2023

Date of decision=11.12.2023

In the case of :

Dr. Naiem-Ul-Haq

S/O: Farooq Ahmad Ahrar

R/O: Bongam Shopian

Tehsil and District Shopian

.....(petitioner)

Versus

Laila Khan

D/O: Tariq Ahmad Khan

R/O: Sofanaman Shopian

Tehsil and District Shopian

.....(Respondent)

In the matter of :

Appeal under section 29 of Domestic Violence Act against the order dated 25.07.2023 passed by the Id.Chief Judicial Magistrate Shopian in file No. 17/2022.

Mr. Musavir Tak advocate for petitioner.

Mr. Mubashir Gatoo advocate for respondent.

CORAM:

Riaz-ul-Haq Mirza

JO Code: JK00075

“O R D E R:

1. The present appeal has been presented by the petitioner through counsel before this court on 05.08.2023 wherein he has assailed the impugned order dated 25.07.2023 passed by the Id. Chief Judicial Magistrate Shopian in the interim application under Section 23 filed along with main petition under section 12 of the Protection of Women from Domestic Violence Act 2005 whereby the interim application came to be allowed to the extent of providing rent for the residence/accommodation of the respondent herein at Srinagar and petitioner herein was directed to pay Rs.9000/- per month to respondent

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herein towards the rent for separate residence of respondent herein and her son at Srinagar from the date of order till final disposal of the case.

2. On presentation of memo of appeal, notice came to be issued to the other side who caused appearance through counsel and contested the appeal.

3. From the perusal of the record it would appear that the respondent herein has filed an application /complaint under Section 12 of Protection of Women from Domestic Violence Act read with other sections and rules made under the Act. It is stated in the application that the respondent herein is the wedded wife of petitioner herein and their marriage has been taken place in the month of May 2016 and out of the said wedlock one issue was born namely Peerzada Nahyan Ahrar, aged 04 years. That she has remained loyal and has been taking care of the petitioner herein in the beginning of the marriage for two years then suddenly his behavior changed without any cause or reason thereafter petitioner turned cruel, inhuman and brutal towards the respondent. That the respondent has been deserted and neglected by the petitioner and after all beating and ill treatment was given to her and was dragged out of her matrimonial home and forced to live with her parents at her parental home along with minor son since August 2021. That all the moveable property which the respondent was having in the house of petitioner has been kept in illegal custody of the petitioner and as such respondent has been left under miserable situation. That the petitioner always commit the criminal in intimidation against the respondent by threatening her for no fault on her part, humiliate and insult her repeatedly uttering words and by doing gestures which cause disrespect to the respondent

and which also cause mental agony to her. That the petitioner is having sufficient source of income as he is a Government employee working in SKIMS Soura Srinagar as Specialist Doctor, presently pursuing MCH and is withdrawing monthly handsome salary of Rs.1,10,000/-. That the monthly expenses of the respondent about Rs.1,00,000/- per month on the basic necessities and the daily needs like the expenses of food, clothing etc. Besides the expenses in the shape of monthly fee of her minor son who is studying in a reputed school Birla Open Mind International School at Pampore Srinagar where the respondent herein has to pay monthly fee including the transportation charges, tuition fee, uniforms and other related charges to the tune of Rs.20,000/- per month towards the school authorities. That forced by the circumstances, the respondent has temporarily took refuge in the residential house of parents at Sofanaman Pinjura as she was thrown out from the matrimonial home in the month of August 2021. That the petitioner has two residential houses at Srinagar one residential house at Jammu and one at Bongam Shopian which are solely enjoyed by the petitioner.

4. The Id. trial court has issued the summons upon the petitioner herein upon presentation of the complaint who accordingly caused appearance and filed objections to the application. It is stated in the objections that this court has no jurisdiction to take the cognizance of the petition u/s 12 of act as the petition is without report of protection officer or service provider and also without any incident report. That the petition has been filed by the petitioner and what sort of domestic violence has been committed against her has not been mentioned in the petition. That the petitioner has not shared any sort of

household with the respondent as the parties were residing at Parraypora Srinagar at the residential house which belongs to the father of the petitioner and the respondent presently is putting up at Hostel SKIMS Soura as he is putting the MCH Decree and is on monthly stipend. The Domestic Violence Act cannot be invoked against the non-applicant/petitioner herein as the divorce has attained finality. Finally prayed that the petitioner may be dismissed.

5. The learned trial Magistrate upon hearing the parties in the interim application filed in terms of Section 23 of the Act has passed the impugned order.
6. Ld. counsel for the petitioner has stated in the appeal That petitioner is student and is pursuing MCH degree at SKIMS Soura and earns meager amount for his family but the respondent has some other designs and is also earning lady presently practicing as Advocate at High court of J&K and Ladakh at Srinagar. The respondent is penal lawyer of J&K Bank, thus is capable to maintain herself.. That the petitioner has love and respect for the respondent and she was requested to resume the matrimonial relationship but repeatedly she has been deceived and thereafter the petitioner pronounce a valid divorce to her.. That petitioner has to feed large family members and also provide all comforts to the respondents and is paying all the dues/charges of his minor child which incurred on his studies but due to the ill fate of the petitioner, the respondent has succumbed to ill design of her parents and during the subsistence of the marriage, no Domestic Violence has taken place against her by the petitioner as she has not filed any sort of complaint regarding Domestic Violence before any forum during the subsistence of marriage. Aggrieved of

the said order the petitioner herein have assailed the same on the following grounds:

- i. *That the impugned order is bad in law and has been passed in hot haste without applying the judicial mind and without appreciating the law of the land..*
- ii. *That the petition is not maintainable as the petition is not in the Form-II as contemplated under rule-6.*
- iii. *That the trial court has no jurisdiction to take the cognizance of the petitioner under section 12 of the Act as the petition was without report of Protection Officer or service provider as mandated by section 12 of D.V.Act.*
- iv. *That the trial court has passed the order by directing the petitioner to pay Rs.9,000/- as rent towards the respondent that too in Srinagar despite the fact that both the parties are the ordinary residents of District Shopian.*
- v. *That the impugned order has not mentioned anything regarding the satisfaction of the court that the Domestic Violence has taken place against the aggrieved person which is pre condition for passing of any residential order, on this count alone the order deserves to be set aside.*
7. Heard and considered.
8. The learned counsel for the petitioner has reiterated the contentions which he has urged in the memo of appeal.
9. On the other hand the ld counsel for the respondent has supported the impugned order.
10. Since the impugned order has been passed in terms of section 23 of Protection of Women from Domestic violence as such it would be important to reproduce the same as under:-

"23.Power to grant interim and ex parte orders.—(1) in any proceeding before him under this Act, the Magistrate may pass such interim order as he deems just and proper.

(2) If the Magistrate is satisfied that an application prima facie discloses that the respondent is committing, or has committed an act of domestic violence or that there is a likelihood that the respondent may commit an

act of domestic violence, he may grant an ex parte order on the basis of the affidavit in which form, as may be prescribed, of the aggrieved person under Section 18, Section 19, Section 20, Section 21 or, as the case may be, Section 22 against the respondent"

Section 18 provides powers to the Magistrate to issue protection orders and likewise Section 19 provides residence orders, Section 20 provides monetary reliefs, Section 21 provides custody orders and Section 22 provides compensation order which can be granted as interim reliefs in favour of aggrieved person in terms of Section 23 during the pendency of main petition under Section 12 of the Act.

11. From the perusal of the above stated provision it is clear that the Magistrate is empowered to issue various interim orders/ reliefs in terms of Section 18 to 21 and Section 22 of the Act during the pendency of application/ complaint filed in terms of Section 12 of the Act.
12. Here in the instant case the present relationship as husband and wife has been disputed by the petitioner herein before the trial court as well as before this court by alleging that their marriage has already been dissolved for the reasons as alleged by him in the objections as such according to him, petitioner has no any obligation towards respondent herein. However, the termination of marriage has not been admitted by the respondent herein. What is also required under the Act to be established by the aggrieved person is the domestic relationship with the respondent and it would be important to reproduce the definition of the domestic relationship which is provided under Section 2 (f) which means relationship between the two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage or through a relationship in the nature of marriage, adoption or are family members living together as a joint family.

13. From the above stated definition of Domestic relationship, it is clear that the aggrieved person is not supposed to show and establish before the court that she is in relationship with the petitioner at the time of presentation of the complaint. However she is only supposed to show to the court that she was in a relationship as wife with the petitioner at any point of time meaning thereby even for the sake of arguments their marriage is not subsisting at the time of institution of the complaint she cannot be precluded from seeking the reliefs under the Act if she shows that she was in a relationship with the petitioner at any point of time prior to filing of complaint. The aggrieved person was admittedly living with the petitioner in a shared household with other family members i.e. parents of the petitioner which fact has not been categorically denied and it is alleged by the aggrieved person that she was being subjected to various forms of domestic violence at the hands of petitioner and there are also counter allegations raised by the petitioner that she did not prove herself to be prudent wife and was having always a quarrelsome attitude. Therefore, one of the contentions raised by the ld. counsel for the petitioner is that the petitioner has not any obligation or duty towards the aggrieved person who has been already divorced by him has no force for the reason that even marriage at the time of presentation of the petition between the parties is not subsisting same cannot be a ground to reject the claim of the aggrieved person. Further main petition is still pending disposal and these issues so raised can be taken care of during the trial of the main petition. It would be also important to reproduce definition of shared household as defined under Section 2(s) as under:-

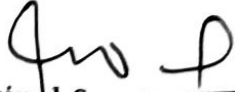
"shared household" means a household where the person aggrieved lives or at any stage has lived in a domestic relationship either singly or along with the respondent and includes such a household whether owned or tenanted either jointly by the aggrieved person and the respondent, or owned or tenanted by either of them in respect of which either the aggrieved person or the respondent or both jointly or singly have any right, title, interest or equity and includes such a household which may belong to the joint family of which the respondent is a member, irrespective of whether the respondent or the aggrieved person has any right, title or interest in the shared household.

14. The respondent herein has leveled various allegations of Domestic Violence acts committed upon her by the petitioner herein. The definition of domestic violence act includes mental, physical abuse, sexual abuse, verbal, emotional abuse , economic abuse etc. Verbal and emotional abuse includes insults, ridicule, humiliation, name calling etc. The economic abuse includes deprivation of all or any economic or financial resources etc.. There are also counter allegations raised by the petitioner herein in the objections and these allegations and counter allegations are required to be proved or disproved during the course of trial in the application which is pending in terms of Section 12 of the Act and the parties will be given opportunity to produce their respective evidence before the trial court. The impugned order was assailed by the counsel for the petitioner that trial court has no jurisdiction to pass the said order. The trial court has passed the residence/accommodation of the respondent at Srinagar on rent basis and directed the petitioner herein to pay Rs.9000/- per month. Admittedly, petitioner herein is doctor by profession and respondent No.2 is school going child and is studying at Srinagar. In this pretext good education is right of every citizen. Therefore, providing of residence/accommodation to the

minor child at Srinagar by the trial court is within the jurisdiction of trial court and there is nothing bad in it. Therefore, the ld. Magistrate was justified in passing the impugned order whereby she was provided interim monetary relief after taking into consideration the overall facts and circumstances of the case which does not warrant any interference from this court. Therefore, the impugned order dated 25.07.2023 passed by the trial court is upheld. The record of the trial court, if any, shall be sent down along with a copy of this order with the direction upon the ld. trial Magistrate to proceed in the complaint in accordance with law. The parties through their counsel are directed to cause their appearance before the ld. trial Magistrate below on 21.12.2023.

15. File shall go to records after its due completion.

Announced:
11.12.2023


Principal Sessions Judge,
Shopian.

